

CHANNEL PARTNER AGREEMENT

THIS CHANNEL PARTNER AGREEMENT IS MADE AND EXECUTED AT BENGALURU ON THIS _____

BY AND BETWEEN M/s. Habulus Builders and Developers Private Limited,
a company incorporated under the Companies Act, 2013,
having its registered office at Site No. 1482,1483, Sri Nilaya Residency - 2,
Deccan Palms Layout, Anantha Nagar, Electronic City Phase 2, Bengaluru
(Bangalore) Urban, Karnataka, 560100.

(hereinafter referred to as the **"Company"**, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns)

of the ONE PART;

AND

M/s. _____,

a company/firm/individual having its principal place of business at

_____/
represented by _____

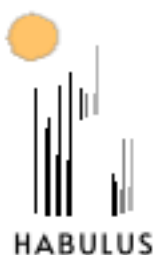
(hereinafter referred to as the **"Channel Partner"** or **"CP"**, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns)

of the OTHER PART.

CHANNEL PARTNER ONBOARDING DOCUMENTS The Channel Partner shall submit the following documents along with this Agreement:

- Duly signed and sealed Habulus Channel Partner Agreement
- Copy of PAN Card
- Copy of GST Registration Certificate
- Copy of RERA Registration Certificate
- Cancelled Cheque of the designated account for commission payment
- Copy of Authorised Representative's ID proof

1. APPOINTMENT AND SCOPE The Company hereby appoints the Channel Partner on a non-exclusive basis to market, promote, and facilitate the sale of residential units in the following projects Habulus Tranquil, developed by M/s. Habulus Builders & Developers Private Limited (GSTIN: 29AAFCH4570A1ZR), Habulus Oasis Grove, developed by M/s. Habulus Homes Private Limited (GSTIN: 29AAECH8481R1ZJ) subject to the terms and conditions contained. The Channel Partner shall not represent itself as a sole selling agent, nor make any commitments, representations, or assurances on behalf of the Company without obtaining prior written authorization from the Company.



2. TERM OF AGREEMENT The committed period shall be valid for 3 (three) months from the date of handing over the project sales agreement (up to project launch). Upon expiry of the committed period, both parties shall execute a fresh agreement with revised terms and conditions. This same condition shall apply to all other Channel Partners engaged for the Habulus Tranquil & Habulus Oasis Grove Projects.

3.Channel Partner Brokerage Terms Brokerage / Service Fee

a. The Company agrees to pay a **2%** brokerage/service fee on the **basic sale consideration** (excluding taxes, deposits, legal, and registration charges) for every flat sold through the Channel Partner.

Tax Deduction at Source (TDS)

b. The brokerage amount shall be **subject to deduction of tax at source (TDS)** as per applicable law. The Company shall issue the necessary **TDS certificate** upon request by the Channel Partner.

Eligibility for Raising Invoice

c. The Channel Partner shall become eligible to raise an invoice upon the occurrence of either of the following events, whichever is earlier:

- (a) The customer has made a minimum payment of 20% of the sale consideration, or
- (b) Execution of the **Tripartite Agreement / Agreement for Sale**.

Additional Brokerage (if applicable)

d. Any **incremental or additional brokerage** applicable for specific projects, as confirmed by the Company in writing, shall be invoiced separately by the Channel Partner.

Payment Timeline

e. The Company shall release the brokerage payment **within 7 days** from the date of receipt of the correctly raised invoice, subject to verification and approval.

Mode of Payment

f. All payments shall be made through **bank transfer or cheque**, after deduction of applicable taxes.

4. CANCELLATION AND REFUND OF BROKERAGE

a. If a customer cancels the booking **before execution of the Sale Agreement**, no brokerage shall be payable.

b. If cancellation occurs **after execution of the Sale Agreement or Tripartite Agreement**, the Channel Partner shall refund or adjust the brokerage paid, subject to the following:

- If the **customer has paid at least 40%** of the total flat cost (self-funding or loan), the Channel Partner shall **not be required to refund** the commission already paid, even if the project or booking is cancelled by the Company for reasons not attributable to the customer.
- If the customer has paid less than 40% of the total flat cost, the brokerage amount shall be refunded proportionately.

c. If the project or booking is cancelled by the Company without any fault of the customer, the Channel Partner shall not be liable to refund the commission, provided the customer has paid the minimum 40% threshold mentioned above.



5. LEAD REGISTRATION AND VALIDITY

1. All customer leads shall be registered with the Company via email or through the official Habulus CRM App.
2. The lead will be valid for **30 days from registration**, and an additional **30 days post site visit**, unless otherwise approved in writing. If the deal for any registered lead is not closed within the initial 30 days from registration, such lead shall be automatically unregistered from the CRM App and released back into the system. In such case, if the same customer subsequently approaches any other marketing personnel, they may handle the lead independently. It is expected that flat booking for any valid lead shall be completed within the 30-day registration period.
3. Only leads duly registered and acknowledged by the Company shall be eligible for brokerage consideration.
4. In case multiple Channel Partners claim the same lead, the **decision of the Company shall be final and binding**.

Site Visit Intimation and Coordination

5. The Channel Partner shall **inform the Company's Sales or CRM team in advance** before bringing a customer for a site visit.
6. The Channel Partner must **accompany the customer** during the first visit to ensure proper coordination and lead recognition.
7. If the Channel Partner **brings the customer before the Habulus Sales Team engages**, the lead credit shall remain with the Channel Partner.
8. If the customer visits the site **without prior intimation or in the absence of the Channel Partner**, the Company shall have full discretion to reassign or reject the lead.

6. CODE OF CONDUCT AND ETHICS

The Channel Partner shall:

- Conduct all business in an **ethical and professional** manner.
- Not share, offer, or pass on any part of the brokerage or incentive to customers or Company staff.
- Avoid **misrepresentation**, false commitments, or defamatory communication regarding the Company or its projects.
- Seek **prior written consent** before using the Company's name, logo, or marketing materials in any media.
- Maintain **confidentiality** of customer data, pricing, and commercial information.
- No direct interaction with walk-in customers without approval.
- No duplicate/multiple lead submissions.
- No unauthorized commitments, discounts, or price changes.
- No tarnishing or harming the brand's image.
- Must comply with laws, regulations, and RERA guidelines.

Violation of any of the above shall lead to **immediate termination and forfeiture of unpaid commission**.



7. ADVERTISING AND PROMOTIONS

No advertisement, website, or marketing content shall be created or circulated using the Company's name, brand, or project details without **prior written approval**.

Unauthorized usage shall attract **legal and financial liability**.

8. TAX, RERA, AND COMPLIANCE

1. The Channel Partner must possess valid **RERA registration** as per the Real Estate (Regulation and Development) Act, 2016, and submit a copy before commencing sales activities.
2. The Channel Partner shall comply with all **tax obligations**, including GST registration and TDS deductions.
3. The Company shall not be responsible for any legal or financial consequences arising out of **non-compliance** by the Channel Partner.

9. INDEMNITY AND LIABILITY The Channel Partner shall fully **indemnify and hold harmless** the Company from any loss, damage, claim, or expense arising from any act of misrepresentation, fraud, or negligence by the Channel Partner or its representatives.

10. TERMINATION

1. Either party may terminate this Agreement by giving **30 days' written notice**.
2. The Company may terminate this Agreement **immediately** if the Channel Partner:
 - Engages in unethical or fraudulent practices;
 - Loses or fails to renew RERA registration; or
 - Breaches any terms of this Agreement.
3. Upon termination, the Channel Partner shall **return all Company materials**, data, and documents.

11. RELATIONSHIP OF PARTIES

This Agreement is on a **principal-to-principal basis**. Nothing herein shall be construed as creating a partnership, employment, or agency relationship between the parties.

12. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the **laws of India** and subject to **the exclusive jurisdiction of the competent courts in Bengaluru, Karnataka**.

IN WITNESS WHERE OF, the parties here to have executed this Agreement on the date, month, and year first above written.

The Channel Partner hereby confirms that they have carefully read, understood, and agreed to abide by all the terms and conditions contained in this Agreement. By signing below, the Channel Partner acknowledges their acceptance of the same in full.



For **HABULUS BUILDERS AND DEVELOPERS PVT. LTD.**

Authorized Signatory: _____

Name: _____

Designation: _____

Signature: _____

Date: _____

For **CHANNEL PARTNER**

Authorized Representative: _____

Name: _____

Designation: _____

Signature: _____

Date: _____

Witnesses:

1. Name: _____ Signature: _____

2. Name: _____ Signature: _____